

**-Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

August 14, 2026

#	Case Name	Tentative
1.	Korail vs. Fedex Corporation Employees' Pension Plan 25-01480722	Motion to Appear Pro Hac Vice The application of attorney Patrick H. Morris to appear pro hac vice as counsel for defendant Fedex Corporation Employees' Pension Plan in this matter is hereby DENIED without prejudice . Moving attorney failed to include in his declaration "[t]he title of each court and cause in which the applicant has filed an application to appear as counsel <i>pro hac vice</i> in this state in the preceding two years, the date of each application, and whether or not it was granted." (CRC, Rule 9.40(d)(5).)

		Additionally, the application does not include a proof of service on the State Bar at its San Francisco Office. (CRC, Rule 9.40(c)(2).) Accordingly, the motion is DENIED without prejudice. THIS RULING IS FINAL. Clerk to give notice.
2.	Chou vs. Gordon Lane Healthcare, LLC 24-01383600	Motion to Compel Production Plaintiff Kimberly Chou’s motion to compel defendant Gordon Lane Healthcare, LLC dba Gordon Lane Care Center to provide further responses to plaintiff’s Request for Production of Documents, Set One, is GRANTED. (Code Civ. Proc., § 2031.310 [authorizing motion].) Defendant Gordon Lane Healthcare, LLC dba Gordon Lane Care Center shall provide full, complete, and verified further responses to Request for Production of Documents, Set One, Request Nos. 9, 102, 104, 106, 108, 117, 119, 140, 169, 170, 187, and 206, without objection, within 10 days of notice. (TRIAL DATE IS APPROACHING) Defendant Gordon Lane Healthcare, LLC dba Gordon Lane Care Center shall also produce all documents in its possession, custody, and/or control, responsive to Request Nos. 9, 102, 104, 106, 108, 117, 119, 140, 169, 170, 187, and 206, without objection, within 10 days of notice. (TRIAL DATE IS APPROACHING) Moving party has shown good cause for production of the requested documents, and defendant has not met its shifted burden of substantiating any timely objections or claimed privileges. (<i>Kirkland v. Superior Court</i> (2002) 95 Cal.App.4th 92, 98 [“Once good cause was shown, the burden shifted to Kirkland to justify his objection”]; see also <i>San Diego Professional Assoc. v. Superior Court</i> (1962) 58 Cal.2d 194, 199 [as a general rule, the party resisting an effort to enforce discovery has the burden to demonstrate why a particular privilege applies].) REMINDER: Jury trial is set for October 2, 2026, at 11:00 a.m. Moving plaintiff shall give notice.

3.	Gomio vs. Kia America, Inc. 25-01510570	1. Motion to Compel Deposition (Oral or Written) X2 2. Order to Show Cause re: Venue HEARINGS VACATED. Case to be transferred to Riverside County.
4.	Valenzuela vs. Chacon 25-01488136	1. Motion for Leave to Intervene 2. Case Management Conference Proposed plaintiff-in-intervention Elite Claims Management’s motion for leave to intervene is GRANTED. “If an employee injured in the course of his or her employment by a third party commences an action against that third party, Labor Code section 3853 grants the employee’s employer [including the employer’s workers compensation insurer] an unconditional right to intervene in the action ‘at any time before trial on the facts.’ ” (<i>Mar v. Sakti Internat. Corp.</i> (1992) 9 Cal.App.4th 1780, 1782; <i>Garofalo v. Princess Cruises, Inc.</i> (2000) 85 Cal.App.4th 1060, 1069; Civ. Code, § 387, subd. (d)(1)(A) [“The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if ... [¶] ... [a] provision of law confers an unconditional right to intervene.”]; see Lab. Code, §§ 3211, 3850, subd. (b); <i>Fremont Comp. Ins. Co. v. Sierra Pine</i> (2004) 121 Cal.App.4th 389, 396; see also Mtn. P&As at p. 3; Soleimanpour Decl. ¶¶ 2-6, Ex. A.) Intervenor Elite Claims Management shall separately file its proposed complaint-in-intervention (see Soleimanpour Decl. at Ex. A) within 21 days. The complaint-in-intervention must be filed as a separate document to ensure it is properly indexed in the record. The Case Management Conference is continued to February 25, 2027, at 9:30 a.m. in Department C12. Moving party shall give notice.
5.	Rodriguez vs. The Estate of Douglas William Brown, by and through its administrator Shay Rightler 25-01472342	1. Demurrer to Cross-Complaint 2. Case Management Conference <u>Cross-Defendant Gabriela Rodriguez’ Demurrer to the Cross-Complaint</u> Cross-Defendant Gabriela Rodriguez’ demurrer to the Cross-Complaint is OVERRULED.

Uncertainty

Demurrers for uncertainty are disfavored. The Court will only sustain a demurrer for uncertainty if it is so poorly drafted that Defendant cannot reasonably respond. *Khoury v. Maly's of California Inc.* (1993) 14 Cal.App.4th 612, 616. Here, the Cross-Complaint is not so uncertain that Cross-Defendant is unable to intelligently respond. Any purported uncertainty in the allegations of the Cross-Complaint can be clarified through discovery.

Misjoinder of Parties

Cross-Defendant argues that Cross-Complainant Brown is improperly included as a Cross-Complainant because he was not a party to the unlawful detainer. This argument is not persuasive. Plaintiff provides no legal authority or coherent reasoning as to why Mr. Brown is an improper party to this lawsuit.

Failure to State a Claim

Cross-Defendant demurs to each cause of action alleged in the Cross-Complaint for failure to state facts sufficient to constitute a cause of action. To the Court, none of these arguments are persuasive.

Trespass

To plead a cause of action for Trespass to Land, all that must be pleaded is “an unauthorized entry onto another’s land that disrupts the right to exclusive possession.” (*Civic Western Corp. v. Zila Industries, Inc.* (1977) 66 Cal.App.3d 1, 17-18.) The Cross-Complaint adequately pleads a cause of action for trespass. (See Cross-Complaint ¶¶ 9-12; 20-25.) The demurrer to this cause of action is **OVERRULED**.

Damage to Real Property

Cross-Defendant argues that a demurrer is warranted to this cause of action because the subject property “was not taken care of and maintained since 2018.” This is not a ground for demurrer. Rather, Cross-Defendant attempts to contradict the facts alleged in the Cross-Complaint. Such questions of fact are not to be resolved on demurrer.

The Cross-Complaint sufficiently states a cause of action for damage to real property. The Cross-Complaint alleges that Cross-Defendant made alterations to the subject property without permission and that these alterations have impacted the value of the property. That is

sufficient for purposes of pleading. The demurrer is OVERRULED as to this cause of action.

Fraud

To plead a legally sufficient cause of action for fraud, the pleader must allege (1) a misrepresentation; (2) the defendant's knowledge of the falsity of the misrepresentation; (3) intent to induce plaintiff's reliance on the misrepresentation; (4) actual reliance upon the misrepresentation; (5) causation; and (6) resulting damages. (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2005) 35 Cal.4th 979, 990.)

The Cross-Complaint sufficiently alleges each of these elements. The Cross-Complaint alleges that Cross-Defendant made a misrepresentation by delivering a false 3-day notice to vacate the subject property to Cross-Complainant Brown, and that this was a false statement because Cross-Defendant had no authorization from the Estate to evict Mr. Brown. (Cross-Complaint ¶¶ 31-32.) Cross-Complainant is alleged to have been aware of the falsity of the 3-day notice. (Cross-Complaint ¶33.) Cross Defendant is alleged to have intended that Brown rely on the 3-day notice to vacate the property. (Cross-Complaint ¶34.) Cross-Complainant Brown is alleged to have reasonably relied upon the accuracy of the 3-day notice. (Cross-Complaint ¶35.) Cross-Complainants allege damages resulting from the misrepresentation. (Cross-Complaint ¶¶ 36-40.)

Cross-Defendant's disagreement with the factual accuracy of the allegations of the Cross-Complaint are not properly resolved in a demurrer. The demurrer is OVERRULED as to this cause of action.

Intentional Infliction of Emotional Distress

"The elements of a cause of action for intentional infliction of emotional distress are: "(1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160.)

"Outrageous" conduct is defined as conduct that is "so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Id.*)

The conduct constituting extreme and outrageous conduct must be alleged “with great specificity” in order to withstand a demurrer. (*Id.* at 161.)

The Cross-Complaint sufficiently alleges the elements of this cause of action. The Cross-Complaint alleges Defendant purported to evict and lock brown out of the subject property under false pretenses. (Cross-Complaint ¶42.) The Cross-Complaint alleges this conduct was directed at Cross-Complainant Brown. (Cross-Complaint ¶43.) The Cross-Complaint alleges Cross-Complainant suffered extreme and/or severe emotional distress as a result of this conduct. (Cross-Complaint ¶¶44-45.) The Court finds that the Cross-Complaint sufficiently alleges facts indicating outrageous conduct. Accordingly, the demurrer is OVERRULED as to this cause of action.

Conversion

A cause of action for conversion requires allegations of “(1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property right; and (3) damages.” (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 650.)

The Cross-Complain sufficiently alleges both counts of conversion. Cross-Complainant alleges that Cross-Defendant caused personal property belonging to the Estate to be wrongfully disposed of by having the city of Santa Ana tow the vehicle. (Cross-Complaint ¶¶ 47-49.) Cross-Complainant alleges that Cross-Defendant wrongfully disposed of Cross-Complainant Brown’s personal property he had kept at the residence prior to Cross-Complainant’s occupation. (Cross-Complaint ¶¶ 54-56.) Cross-Defendant’s arguments in support of the demurrer appear to be nothing more than arguments that dispute the factual veracity of the allegations of the Cross-Complaint. Again, a demurrer is not an appropriate vehicle for resolving such disputes. The demurrer to the Conversion Causes of Action is OVERRULED.

Cross-Defendant shall file an Answer to the Cross-Complaint within 30 days.

The Case Management Conference is CONTINUED to November 23, 2026, at 9:30 a.m. in Department C12.

Cross-Complainant shall provide notice.

6.	Contreras vs. Hoag Memorial Hospital Presbyterian 26-01542885	1. Demurrer to Complaint 2. Case Management Conference Defendants Hoag Memoria Hospital Presbyterian and Hospitality & Environmental Labor Partners, LLC’s DEMURRER to the Complaint is OVERRULED. Defendants demur to each of the six causes of action alleged in the Complaint. First Cause of Action - Disability Discrimination The FEHA makes it an unlawful employment practice to discharge a person from employment or discriminate against the person in the terms, conditions, or privileges of employment, based on “race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation.” (Govt. Code § 12940(a).) To establish a prima facie case of discrimination, a plaintiff “must generally provide evidence that: (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (<i>Dinslage v. City and County of San Francisco</i> (2016) 5 Cal.App.5th 368, 378.) Defendants argue that Plaintiff cannot pursue a claim for disability discrimination on the basis of an “actual” physical disability in the absence of factual allegations she was in fact disabled, and that the employer had knowledge of the employee’s disability. (See <i>Rope v. Auto-Chlor System of Washington, Inc.</i> (2013) 220 Cal.App.4th 635, 659.) A person is “physically disabled” if, among other things, the individual: (1) Has a physiological condition that both (a) affects a specific bodily system and (b) limits a major life activity; (2) Has a “record or history of” such a physiological condition; or (3) Is “regarded or treated by” the individual's employer as having, or having had, any condition that makes achievement of a major life activity difficult, or as having, or having had, a physiological condition that is not presently disabling, but that may become so.
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(Govt. Code § 12926, subd. (k)(1)(A), (B), (3), (4), (5).)

To proceed as a physically disabled person under the first prong of the statutory definition, Plaintiff must demonstrate his injury, or physical condition makes “difficult” the achievement of work or some other major life activity.

Here, the Complaint alleges Plaintiff “was completely health [sic] and did not need accommodations nor did she have any work restrictions in place.” (Complaint, ¶ 20.) Moreover, Plaintiff cannot prove Defendants knew about her disability as there is no allegation that Plaintiff told her employer about her medical condition, disability or need for accommodation. Therefore, Plaintiff cannot state a cause of action for disability discrimination.

Under the FEHA, however, even if an applicant or employee is not actually disabled, they can still state a claim if the applicant or employee is “regarded” or “treated” by the employer “as having, or having had, any physical condition that makes achievement of a major life activity difficult.” (*Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 53.)

The Complaint alleges that her job offer was rescinded because “she failed her physical health assessment due to the restrictions from her 2004 closed workers compensation case.” (Complaint, ¶ 20.) Such allegation satisfies the third prong of the statutory definition for being “physically disabled.”

Plaintiff also alleges she was qualified for the position she sought and had been performing the same job duties for approximately three years without issue. (Complaint, ¶ 20.) She further alleges she was denied the position due to her perceived disability. (Ibid.)

Accordingly, Plaintiff has alleged sufficient facts to state a cause of action for disability discrimination and the demurrer to the first cause of is OVERRULED.

Second Cause of Action – Failure to Accommodate

To prove her claim of failure to accommodate, Plaintiff must prove: (1) she was employed by Defendant; (2) she had a disability; (3) Defendant knew of the disability; (4) Plaintiff could perform the essential duties of his position with a reasonable accommodation; (5) Defendant failed to provide reasonable accommodation; and (6) resulting harm. (CACI 2541.)

Defendants argue because Plaintiff alleges she was not disabled and did not require an accommodation, she cannot state a claim for failure to accommodate.

The court in *Gelfo*, supra, held that “employers must reasonably accommodate individuals falling within any of FEHA’s statutorily defined “disabilities,” including those “regarded as” disabled, and must engage in an informal, interactive process to determine any effective accommodation. (*Gelfo*, supra, 140 Cal.App.4th at 55-61.)

Therefore, because Defendants “regarded” Plaintiff as disabled, she can also state a cause of action for failure to accommodate. Accordingly, the demurrer to the second cause of action is OVERRULED.

Third Cause of Action – Failure to Engage in the Interactive Process

To establish her claim that Defendant failed to engage in the interactive process, Plaintiff must prove: (1) she was employed by Defendant; (2) she had a disability known to Defendant; (3) he requested a reasonable accommodation so that he could perform the essential job requirements; (4) she was willing to participate in the interactive process; (5) Defendant failed to engage in the interactive process; and (6) resulting harm. (CACI No. 2546.) If the interactive process fails, liability "for the failure rests with the party who failed to participate in good faith." (*Gelfo*, supra, 140 Cal.App.4th at 54.)

Gelfo also held that an employer must engage in an informal dialogue to determine effective accommodations with an applicant or employee regarded as disabled. (Id. at 61.) The employer in *Gelfo* argued that an employer owes no duty to engage in a “futile” discussion with an applicant or employee who is merely “regarded as” disabled and to whom no duty of reasonable accommodation is or will be owed. The court rejected this for the same reasons it rejected the argument an employer need not accommodate an employee who is “regarded as” disabled.

Therefore, Plaintiff can state a cause of action for failure to engage in the interactive process. Accordingly, the demurrer to the third cause of action is OVERRULED.

Fourth Cause of Action – Failure to Prevent Discrimination

Defendants argue that because there is no actual discrimination or retaliation under FEHA, Plaintiff cannot state a claim for failure to prevent discrimination/retaliation.

But as stated above and below, Plaintiff has stated a cause of action for discrimination and retaliation. Defendants make no other arguments with respect to this cause of action.

Accordingly, the demurrer to the fourth cause of action is **OVERRULED**.

Fifth Cause of Action – Retaliation

“To establish a prima facie case of retaliation, the plaintiff must show (1) he or she engaged in a protected activity; (2) the employer subjected the employee to an adverse employment action; and (3) there exists a causal link between the protected activity and the employer's action.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

Plaintiff alleges she engaged in protected activities by informing Defendants of her disability and by requesting a reasonable accommodation to treat and/or recover from her disabilities. (Complaint, ¶ 58.)

Defendants assert that notifying an employer of one’s medical status, even if such medical status constitutes a disability under the FEHA, does not fall within the protected activity in subdivision (h) of section 12940. (*Moore v. Regents of Univ. of Calif.* (2016) 248 Cal.App.4th 216, 247.) However, it is unlawful for an employer to retaliate or otherwise discriminate against a person for requesting an accommodation under the FEHA regardless of whether the request was granted. (Govt. Code § 12940(m)(2).)

Here, Plaintiff has alleged she requested an accommodation from Defendants and thereafter was terminated because of her perceived disability. This is sufficient to state a claim for retaliation.

Accordingly, the demurrer to the fifth cause of action is **OVERRULED**.

Sixth Cause of Action – Wrongful Termination in Violation of Public Policy

The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 154.) However, where a common law claim for wrongful termination in violation of public policy is derivative of plaintiff's statutory claim for violation of the FEHA, the public policy claim will either rise or fall with the FEHA claim. (See *Hanson v. Lucky Stores, Inc.* (1999) 74 Cal.App.4th 215, 229.)

Because Plaintiff has stated a claim for discrimination and retaliation under the FEHA, she has also stated a claim for wrongful termination in violation of public policy.

Accordingly, the demurrer to the sixth cause of action is **OVERRULED**.

Seventh Cause of Action – Failure to Rehire

Defendant argues Plaintiff cannot state a cause of action for failure to rehire because she admits she was healthy and did not need any accommodations.

As stated above, Plaintiff has stated a cause of action for discrimination, retaliation and wrongful termination in violation of public policy. Therefore, she can state a claim for failure to rehire.

Accordingly, the demurrer to the seventh cause of action is **OVERRULED**.

Defendant is ordered to file an answer within 30 days of this ruling.

The Case Management Conference is CONTINUED to November 23, 2026, at 9:30 a.m. in Department C12.

Moving Defendant to give notice of this ruling.

7.	Wardenburg vs. Markel Insurance Company 25-01503581	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Amended Complaint 3. Case Management Conference Defendant Assistance Insurance Agency's demurrer to Plaintiff Mark Wardenburg's First Amended Complaint is SUSTAINED as to the First, Second, and Fourth Causes of Action and OVERRULED as to the Third Cause of Action. (Code Civ. Proc. §430.10, subd. (e).) Plaintiff fails to allege a contract of insurance between him and Defendant Assistance. Accordingly, the First and Second Causes of Action cannot be established against Defendant Assistance. Plaintiff has leave to file a Second Amended Complaint to sufficiently allege a contractual relationship with Assistance and the breach of that contract and/or breach of the implied covenant of good faith/fair dealing arising from that contract. Plaintiff fails to allege the cause of action for negligent misrepresentation with sufficient specificity to state a cause of action. Plaintiff has leave to amend to allege the specific facts concerning the alleged misrepresentation, Defendant's lack of reasonable belief in its truth, Defendant's intent for Plaintiff to rely on the statement, Plaintiff's reasonable reliance upon the statement, and resulting damages. The demurrer to the Third Cause of Action for Negligence is OVERRULED. The elements of a cause of action for negligence are "(a) a legal duty to use due care; (b) a breach of such legal duty; and (c) the breach as the proximate or legal cause of the resulting injury." (<i>Ladd v. County of San Mateo</i> (1996) 12 Cal. 4th 913, 917.) Defendant admits that it owes a duty of care "to use reasonable care, diligence, and judgment in procuring the insurance requested by an insured." (<i>Pacific Rim Mechanical Contractors, Inc. v. Aon Risk Ins. Services West, Inc.</i> (2012) 203 Cal. App. 4th 1278, 1283.) Plaintiff has sufficiently alleged that Defendant failed to procure an insurance policy that aligned with what he instructed Defendant to procure. The question of whether Plaintiff knew or should have known the terms of the policy procured are questions of fact that are not appropriately resolved in the context of a demurrer.
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		Defendant's motion to strike is DENIED without prejudice as MOOT in light of the ruling on the demurrer. Plaintiff shall have 30 days to file a Second Amended Complaint. The Case Management Conference is CONTINUED to March 25, 2027, at 9:30 a.m. in Department C12. Moving Defendant shall provide notice.
8.	Spivey vs. Liboiron 25-01476784	Motion to Enforce Settlement Plaintiff Jessica Spivey's motion to enforce settlement is CONTINUED to October 16, 2026, at 9:30 a.m. in Department C12, due to a proof of service defect and for further briefing as ordered below. As an initial matter, the proofs of service of the moving papers are defective in that they fail to state the email address of the person making service. (Code Civ. Proc., § 1013b, subd. (b)(1).) Plaintiff shall properly serve all moving papers on all parties who have appeared in this action and file proper proof of service of the same with the court by Friday 9/18/26. The subject settlement agreement also reveals multiple procedural issues that plaintiff has failed to address. The settlement agreement settles two separate actions between the parties, including (1) the instant action, Case No. 2025-01476784; and (2) <i>Spivey v. Liboiron, et al.</i>, Case No. 2025-01476793, a wage and hour action that includes Private Attorneys General Act of 2004 (PAGA) claims. (See Schmeichel Decl. ¶¶ 3-5, Ex. 1.) Plaintiff has not filed a motion to consolidate for purposes of enforcing settlement or even a notice of related cases to date, and these cases have yet to be deemed related, much less consolidated. Plaintiff is ORDERED to serve and file a supplemental brief supported by citations to authority addressing all of the following issues, by Friday 9/18/26: (1) Whether Code of Civil Procedure section 664.6 allows the court to enter a judgment pursuant to a settlement agreement in just one of the two separate actions that the settlement agreement jointly resolves. (See Code Civ. Proc., § 664.6, subd. (a) ["If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court ... for

settlement of the case, or part thereof, the court, upon motion, may enter judgment *pursuant to the terms of the settlement.*”]; see also *Machado v. Myers* (2019) 39 Cal.App.5th 779, 790, 794 [entry of judgment different from the parties’ settlement agreement “runs afoul of section 664.6, which allows for entry of judgment ‘*pursuant to the terms of the settlement*’”].)

(2) Whether the subject settlement agreement—which in part settles plaintiff’s “individual” PAGA claims asserted in the separate wage and hour action (2025-01476793)—must be reviewed and approved by the court before it may be enforced pursuant to Code of Civil Procedure section 664.6. (See Lab. Code, § 2699, subds. (a), (s)(2) [“The superior court shall review and approve *any* settlement of *any* civil action filed pursuant to [PAGA]. The proposed settlement shall be submitted to the agency at the same time that it is submitted to the court.”]; see *Williams v. Superior Court (Marshalls of CA, LLC)* (2017) 3 Cal.5th 531, 549 [“PAGA settlements are subject to trial court review and approval”]; *LaCour v. Marshalls of CA, LLC* (2025) 117 Cal.App.5th 505, 512 [defining “individual” PAGA claims vs. “representative” PAGA claims]; see also Schmeichel Decl. ¶ 5, Ex. 1.)

(3) Whether plaintiff or any other party has sought and/or obtained court approval of the settlement of the PAGA claim(s) in the separate wage and hour action (2025-01476793), and the status of any such request for relief, if any.

All parties shall take notice of the court’s intent to take judicial notice on its own motion of the operative first amended complaint filed in the wage and hour action (Case No. 2025-01476793) at the time of the continued hearing on this matter. (See Evid. Code, §§ 452, subd. (d), 455.)

As stated above, this hearing is CONTINUED to October 16, 2026, at 9:30 a.m. in Department C12.

REMINDER: Jury trial in this matter is set for December 11, 2026.

THIS RULING IS FINAL.

Court clerk shall give notice.